IN THE NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH (COURT– I) CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING
HELD ON **04.04.2025**THROUGH VIDEO CONFERENCING

PRESENT: HON'BLE SHRI. SANJIV JAIN, MEMBER (JUDICIAL)
HON'BLE SHRI. VENKATARAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

APPLICATION NUMBER	**:**CA(CAA)/21(CHE)/2025
PETITION NUMBER	**:**
NAME OF THE PETITIONER(S)	**:**SameeraRajendran Investments Pvt Ltd & Anr
NAME OF THE RESPONDENTS	**:**
UNDER SECTION	**:**Sec 230-232 of CA, 2013

ORDER

Present: None for the Applicants.

Vide separate order pronounced in Open Court, the application is allowed. The meetings are dispensed with.

Sd/-
(VENKATARAMAN SUBRAMANIAM)
MEMBER (TECHNICAL)

Sd/-
(SANJIV JAIN)
MEMBER (JUDICIAL)

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IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - I, CHENNAI

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of *Scheme of Arrangement (Demerger)*

CA(CAA)/21(CHE)/2025

SAMEERA RAJENDRAN INVESTMENTS PRIVATE LIMITED
(CIN: U65993TZ1992PTC003615)
Having Registered Office at No.1,
Nava India Road, Coimbatore – 641 028.
Represented by Mr. D Rajendran, Director

… 1st Applicant / Demerged Company

And

PRIMA PRODUCTS PRIVATE LIMITED
(CIN: U17111TZ1987PTC001972)
Having Registered Office at Office at No.1,
Nava India Road, Coimbatore – 641 028.
Represented by Mr. Rohit Rajendran, Director

… 2nd Applicant / Resulting Company

*Order Pronounced on **4th April, 2025***

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SHRI. SANJIV JAIN, MEMBER (JUDICIAL)

SHRI.VENKATRAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

Present for Applicants: Mr. M R Thiagarajan, Practicing Company Secretary

ORDER

(Heard through Hybrid Mode)

This is a Joint Company Application Viz., CA(CAA)/21(CHE)/2025 filed by the Applicant Companies, namely Sameera Rajendran Investments Private Limited (for brevity "Demerged Company") and Prima Products Private Limited (for brevity "Resulting Company") under Section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement (Demerger) (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies. The said Scheme is appended as "**Annexure G**" to the CA(CAA)/21(CHE)/2025.

2. The Applicant Companies in this Company Application have sought for the following reliefs;

	EQUITY SHAREHOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
DEMERGED COMPANY	To Dispense with the meeting	NA	NA
RESULTING COMPANY	To Dispense with the meeting	To Dispense with the meeting	To Dispense with the meeting

3. From the certificate of incorporation filed, it is evident that

(i) The Demerged Company is a Private company incorporated under the provisions of Companies Act, 1956 on 29.01.1992. The authorised and paid-up share capital of the Demerged Company as on 31.03.2024 are as follows:

PARTICULARS	AMOUNT
AUTHORISED SHARE CAPITAL 10,000 Equity Shares of Rs.10/- each	**1,00,000**

7,500 Preference Shares of Rs.10/- each	**75,000**
TOTAL	**1,75,000**
ISSUED, SUBSCRIBED AND PAIDUP SHARE CAPITAL 10,000 equity shares of Rs.10/- each	**1,00,000**
TOTAL	**1,00,000**

(ii) The Resulting Company is a Private company incorporated under the provisions of Companies Act, 1956 on 27.05.1987. The authorised and paid up share capital of the Resulting Company as on 30.04.2024 are as follows:

PARTICULARS	**AMOUNT**
AUTHORISED SHARE CAPITAL 5,000 Equity Shares of Rs.100/- each 16,000 Preference Shares of Rs.100/- each	**5,00,000** **16,00,000**
TOTAL	**21,00,000**
ISSUED, SUBSCRIBED AND PAID UP SHARE CAPITAL 5000 Equity Shares of Rs.100/- each	**5,00,000**
TOTAL	**5,00,000**

4. The Applicant Companies have filed their Memorandum and Articles of Association *inter alia* delineating their object clauses as well as the Provisional Financial Statements as on 31.03.2024 and Unaudited Financial Statements as on 31.12.2024 and the same are placed with the typeset.

5. The Board of Directors of the Applicant Companies vide meeting held on **03.01.2025** have unanimously approved the proposed Scheme as contemplated above and copies of resolutions passed thereon have been placed on record by the applicant companies.

6. The Appointed date as specified in the Scheme is **01.04.2024**.

7. The Statutory Auditors of the Demerged and Resulting Company have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the Rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013. The said Certificates of the Statutory Auditors in this regard are placed at ***"Annexure I & J"*** of the Applicant Companies typed set of Documents filed along with the application.

8. The Rationale of the Scheme is as under:

> *"1.1. Both Companies under the Scheme of Arrangement (Demerger) are family companies having ultimate common shareholding by the family members. It is decided between the family members that there shall be an arrangement within the family to ensure that the requirements of the group members of the family in relation to the group companies for future are adequately taken care of.*

1.2. In order to segregate the individual undertaking business, it is intended to demerge the Demerged Undertaking of the Transferor /Demerged Company under the Scheme on a going concern basis into the Transferee/Resulting Company.

1.3. For greater focus and concentration in the respective businesses, to ensure accelerated growth and improved profitability, it would be advantageous to re-organize and restructure the Demerged Company by demerging, transferring and vesting the Demerged Undertaking with the Resulting Company. The Scheme of Arrangement (Demerger) is essentially to ensure better operational management and focus on accelerated growth of individual units, will ensure higher returns to the shareholders, creditors, employees and is also in general public interest. The proposed restructuring would result in better and efficient control by the management for the segregated business and promote their respective growth in still better manner. Further it will result in the following benefits also:

- *Greater Administrative Efficiency*
- *Operational Rationalization, organizational efficiency and optimum utilization of various resources*

- *Ability to leverage financial and operational resources for each business: and*
- *Each business would be able to address independent business opportunities, pursue efficient capital allocation*

1.4. The proposed Scheme is likely to be value accretive for the shareholders and would enable them to select investments best suited to their respective investment strategies. Further, the segregation is also expected to unlock the value of the business of the Demerged Company.

1.5. The Scheme shall not be in any manner be prejudicial to the interests of concerned members, creditors and stakeholders."

9. The Procedure of Scheme of Arrangement is as follows:

"The Scheme envisages the demerger of Securities Business Undertaking of Sameera Rajendran Investments Private Limited (Transferor/Demerged Company) into Prima Products Private Limited (Transferee/Resulting Company) pursuant to section(s) 230-232 of the Companies Act, 2013 with 01st April 2024 as the appointed date. The whole of the demerged undertaking of the Transferor Company shall stand vested into the Transferee Company as a result of the Demerger orders to be passed by the Honourable NCLT. As consideration for the demerger, based on valuation done by the Registered Valuer, for every 3(Three)

fully paid-up shares of Rs 10/- held in the Transferor Company, shareholders of the Transferor Company will be issued 1(One) fully paid-up equity share of Rs 100/- each in the Transferee Company."

10. Taking into consideration the application filed by the Applicant Companies and the documents filed therewith as well as the position of law, this Tribunal issues the following directions: -

A. IN RELATION TO SAMEERA INVESTMENTS PRIVATE LIMITED (DEMERGED COMPANY / 1ST APPLICANT)

I. EQUITY SHAREHOLDERS

(i) There are **2 (Two)** Equity Shareholders, whose consent affidavits are placed at **Pgs. 184-191**. The Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Pg.183** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Demerged Company that there are **2 (Two)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

II. SECURED CREDITORS

(i) There are **NIL** Secured Creditors in the Demerged Company. The Chartered Accountant certifying the list of Secured Creditors is placed at **Pg.192** of the typed set filed with the application. Since it is represented by the Demerged Company that there are **NIL**

Secured Creditors, the necessity of convening, holding and conducting the meeting ***does not arise.***

III. UNSECURED CREDITORS

(i) There are **NIL** Unsecured Creditors in the Demerged Company. The Chartered Accountant certifying the list of Unsecured Creditors is placed at **Pg.192** of the typed set filed with the application. Since it is represented by the Demerged Company that there are **NIL** Unsecured Creditors, the necessity of convening, holding and conducting the meeting ***does not arise.***

B. IN RELATION TO PRIMA PRODUCTS PRIVATE LIMITED

(RESULTING COMPANY / 2ND APPLICANT)

I. EQUITY SHAREHOLDERS

(i) There are **2 (Two)** Equity Shareholders, whose consent affidavits are placed at **Pgs.194-201** and the Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Pg.193** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Resulting Company that there are **Two (2)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

II. **SECURED CREDITORS**

(i) There are **3 (Three)** Secured Creditors, whose consent affidavits are placed at **Pgs. 209-220** and the Certificate issued by the Chartered Accountant certifying the list of Secured Creditors is placed at

Pg.202 of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Resulting Company that there are **3 (Three)** Secured Creditors in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

III. <u>UNSECURED CREDITORS</u>

(i) There are **182 (One Hundred and Eighty-Two)** Unsecured Creditors. The consent affidavits are placed at **Pgs. 228-417** and the Certificate issued by the Chartered Accountant certifying the list of Unsecured Creditors is placed at **Pg.221-227** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Resulting Company that there are **182 (One Hundred and Eighty-Two)** Unsecured Creditors and 38 have given consents by way of Affidavits. The total value of unsecured creditors who gave consent amounts to 92.29% i.e. Rs.12,99,49,522/- (Rupees Twelve Crore Ninety Nine Lakhs and Forty Nine Thousand Five hundred and Twenty Two only) out of the total unsecured credit value of that amounts to Rs.14,08,12,632/- (Rupees Fourteen Crore Eight Lakhs Twelve Thousand Six Hundred and Thirty Two only). Since, there is considerable amount of credit value given by 38 unsecured creditors, this Tribunal observes, there is no necessity of convening, holding and conducting the meeting.

11. The Application stands **allowed** on the aforesaid terms. The Applicant Companies are directed to file an Application for the Second Motion within a period of 14 (Fourteen) days from the date of receipt of this Order.

-Sd-	**-Sd-**
VENKATARAMAN SUBRAMANIAN	**SANJIV JAIN**
MEMBER (TECHNICAL)	MEMBER(JUDICIAL)